

24NWCV04187 24NWCV04187

County: los-angeles

Division: Civil Law and Motion

Department: R

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#17

ANGELICA M., ET AL. v. TIGRANYAN, ET AL.

CASE

NO.: 24NWCV04187

HEARING:

Wednesday, September 16, 2026, at 9:30 AM

Plaintiff Angelica

M.'s Motion to Consolidate is GRANTED.

Moving

Party to give notice.

Background

On

November 4, 2024, Plaintiffs Angelica M.; Marissa M.; Nicolette L.; Deisy L.; Lizeth L.; and Kristina S. filed this action against Defendants Garri Tigranyan; Sergio Iturrios; The Bank Palm Springs LLC; Airbnb, Inc., and Does 1 through 100.

Plaintiffs'

Complaint asserts the following causes of action:

1.

Gross

Negligence;

2.

Negligent

Hiring, Supervision, Retention;

3.

Violation

of Civil Rights;

4.

Invasion

of Privacy;

5.

Intentional

Infliction of Emotional Distress;

6.

Premises

Liability;

7.

Distribution

of Sexually Explicit Materials

Plaintiff Angelica M. ("Plaintiff") moves to consolidate the instant case with Jane Doe v. Airbnb, Inc., et al., Case No. 25NNCV05287.

Motion to Consolidate

"When

actions involving a common question of law or fact are pending before the court, it may order a joint hearing or trial of any or all the matters in issue in the actions; it may order all the actions consolidated and it may make such orders concerning proceedings therein as may tend to avoid unnecessary costs or delay." (Code Civ. Proc. § 1048, subd. (a).) The purpose of consolidation is to enhance trial court efficiency by avoiding unnecessary duplication of evidence and the danger of inconsistent adjudications. (See Todd-Stenberg v. Dalkon Shield Claimants Trust (1996) 48

Cal.App.4th 976, 978-979.)

Actions

may be consolidated in the discretion of the trial court whenever it can be done without prejudice to a substantial right. (Carpenson v. Najarian (1967) 254 Cal.App.2d 856, 862.)

A

Notice of Motion to consolidate cases must (1) include a list of all named parties in each case, the names of those who have appeared, and the names of their respective attorneys of record; (2) include the captions of all the cases sought to be consolidated; and (3) be filed in each case sought to be consolidated. (Cal. Rules of Court, rule 3.350(a)(1).)

“Cases may not be consolidated

unless they are in the same department. A motion to consolidate two or more cases may be noticed and heard after the cases, initially filed in different departments, have been related into a single department, or if the cases were already assigned to that department.” (Super. Ct. L.A. County, Local Rules, rule 3.3(g)(1).)

Analysis

Plaintiff moves for a

court order consolidating this action with 25NNCV05287 for all purposes. Plaintiff contends common issues of law and fact exist in both actions because these actions involve the same facts, the same defendants, the same circumstances, and the same claims.

Both actions allege

that the plaintiffs rented property located at 850 East Sierra Way in Palm Springs, CA, from Defendants Tigranyan and Iturrios that was listed on Airbnb. All Plaintiffs allege that Defendants Tigranyan and Iturrios had hidden video cameras set up inside the home, including the bedroom and bathroom, and that these Defendants downloaded and uploaded video images of Plaintiffs and spied on them without their knowledge through the cameras, and shared videos of them. Plaintiffs allege that Airbnb knew or should have known due to complaints, that these defendants were secretly recording guests, and allowed them to continue advertising and renting the property through Airbnb.

This

action and 25NNCV05287 were

deemed related and assigned to this Department on December 15, 2025. The motion thus complies with Local Rule 3.3(g).

The

Court finds that both cases arise from the

same facts (the same recording scheme at the same property),

involve the same causes of action (with the exception of two additional claims in 25NNCV05287),

and involve the same defendants (except one additional defendant in 25NNCV05287).

Thus, all these actions involve common issues of law and fact. Moreover,

Plaintiff has filed the notice of motion to consolidate in related case 25NNCV05287. Plaintiff has thus complied with CRC Rule 3.350(a)(1).

Airbnb argues that the

case should only be consolidated for discovery and not for all purposes,

arguing that although the general factual background appears to be similar in

nature, the causes of action are different, the defendants are different, and

the basis for recovery and scope of damages are different. Airbnb contends a

pre-discovery motion to consolidate for trial is premature because neither

party can yet assess how, or whether, the evidence will actually overlap.

Airbnb further points out that in 25NNCV05287, there are seven claims against Airbnb,

whereas in this case there are only three. Those additional claims against

Airbnb have separate elements (and potentially inflammatory evidence), separate

proof, and will require additional jury instructions and separate verdict

findings. Airbnb argues that consolidating the actions would risk importing

those broader Doe-specific allegations into Angelica M. and may

unfairly expand the factual scope of Airbnb's defenses in both cases.

The Court disagrees. Trial will require examination of

substantially the same underlying conduct, witnesses, documents, policies,

ownership and management relationships, communications, and notice evidence.

Further, Doe's claims against the former property manager arise from the same facts

at the same property and concern that defendant's management of the property

and the circumstances surrounding the alleged surreptitious recording. The

additional Defendant therefore does not create a separate factual controversy

unrelated to Angelica M. Further, the rental periods at issue occurred

within approximately three months of one another. Moreover, while Airbnb

contends that there are additional claims against it in Doe, the claims are all based on the same underlying facts. Thus, there is substantial overlap in these two cases.

In sum, the Court finds consolidation for all purposes is appropriate.